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The Pact for the Future and the Environment: A marriage of convenience or of conviction?

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“IUCN, the International Union for Conservation of Nature, welcomes the Pact for the Future as a renewed commitment to multilateralism by State members, although we regret the fact that the Pact has not fully achieved the transformative change needed for nature and climate. IUCN is committed to supporting the implementation of the Pact and beyond, and will continue its work to achieve a just world that values and conserves nature. Such a world is the future we must all work for.”

Statement of the IUCN Director-General[1] to the Plenary of the UN Summit of the Future, September 23rd 2024

On September 21st 2020, on the occasion of the commemoration of the 75th anniversary of the United-Nations, and with efforts to limit the devastating impacts of the COVID-19 pandemic including restricting global movement and thus limiting meetings to mostly virtual meetings, United

Nations Member States committed to 12 pledges (leave no one behind, protect the planet, promote peace and prevent conflicts, abide by international law and ensure justice, place women and girls at the centre, build trust, improve digital cooperation, upgrade the United Nations, ensure sustainability financing, boost partnerships, listen to and work with youth and to be prepared) and requested the United Nations Secretary-General to “report back before the end of the seventy-fifth session of the General Assembly with recommendations to advance our common agenda and to respond to current and future challenges”[2].

In 2021, the Secretary-General published his report, “Our Common Agenda”[3], containing a series of proposals responding to those 12 commitments and depicted as in line with and designed to accelerate the achievement of the Sustainable Development Goals. Three key moments, centered around a proposed Summit of the Future to “forge a new global consensus on what our future should look like, and what we can do today to secure it”[4] were put forward. Those moments included a Transforming Education Summit, a World Social Summit and the aforementioned Summit of the Future. Member states then decided in 2022 that a key outcome of the Summit would be “a concise, action-oriented document”[5] named “A Pact for the Future”. And then in 2023, Member states decided that the Pact for the Future will comprise in a chapeau and five chapters[6] (Chapter I: Sustainable development and financing for development; Chapter II: International peace and security; Chapter III: Science, technology and innovation and digital cooperation; Chapter IV: Youth and future generations; Chapter V: Transforming global governance) and will be annexed with a global digital compact and a declaration on future generations[7].

While it would be difficult to overstate the tremendous impacts on the very fabrics of our societies of the evolution of the geopolitical, social, economic and environmental landscape between the 75th celebration of the United Nations in 2020 and the adoption of the Pact of the Future in 2024, including when it comes to the negotiations on the drafting and adoption of the Pact, the Pact, including its two annexes (the global digital compact and the declaration on future generations) were adopted on September 22nd 2024[8].

The adopted document consists in:

- The Pact for the Future with its 56 actions spread across five chapters (see above)
- The Global Digital Compact prominently structured around 5 objectives (Close all digital divides and accelerate progress across the Sustainable Development Goals; Expand inclusion in and benefits from the digital economy for all; Foster and inclusive, open, safe and secure digital space that respects, protects and promotes human rights; advance responsible, equitable and interoperable data governance approaches; enhance international governance of artificial intelligence for the benefit of humanity)
- The Declaration on Future Generations which is balanced around principles, commitments and actions

The adoption of the Pact of the Future is an important success for multilateralism as well as a positive component to the legacy of the leadership of the Secretary-General of the United Nations[9] and the value added of the United Nations system. Still, throughout the negotiations of these documents and their eventual adoption, questions abounded around how, where, to what extent and how impactfully the environmental dimension of sustainable development would be featured across the three documents. Let us discuss below some elements of answers to a few of these questions. The below analysis is a purely intellectual exercise in recognition of the excellent work from diplomats and experts from all over world that resulted in the consensual adoption of the Pact[10].

1. The Pact for the Future

First, it would be difficult to not connect, at least semantically, the “Pact for the Future” to the “Future we want”[11]. Some may say that we are, in 2024, closer to the future we did not want than the one we wanted back in 2012[12]. Furthermore, in 2024, do we still want the same future that we did in 2012? Evidently, in 2012, we did not have yet the structuring frameworks of, inter alia, the 2030 Agenda[13], the Paris Agreement[14] or the Kunming-Montreal Global Biodiversity Framework[15]. There were others[16]. Notwithstanding the development of the global normative landscape and the ebbs and flows of time, there are many elements that are indeed in alignment, which can be seen, depending on one’s predispositions, as a

sign of principle and of coherence, or of lack of progress and imagination. For example, then and now, the eradication of poverty is seen as a particularly urgent priority. On the other hand, the urgency to defend and rethink multilateralism that is ubiquitous in the Pact for the Future is mirrored by language in Future We Want where, with the benefit of hindsight, multilateralism feels taken for granted. While the environmental pillar does benefit from a dedicated section in the future we want[17], the integration of environmental concerns in the Pact for the Future can be seen broader and wider. The three dimensions of the triple planetary environmental crisis are not given the same weight however with Climate Change featuring significantly more prominently[18] than biodiversity or pollution.

Second, while the importance of the rule of law is clearly reflected in the Pact[19], as it already was in 2002's the future we want, the lack of specific mention of the environmental rule of law can be seen as a missed opportunity to capitalize on a result-oriented framework and "deliver a breakthrough to a better and more sustainable future for all[20]".

Third, while the many positive references to human rights need be positively noted[21], and without questioning that all human rights are universal, indivisible, interdependent and interrelated, it matters that the recent recognition of the right to a clean, healthy and sustainable environment as a human right[22] is referred to specifically in the pact when it comes to "the ability of young persons to enjoy their human rights and a clean, healthy and sustainable environment"[23]. However, focusing solely on youth's ability to enjoy such a central right, can also be seen as slight dilution of the required sense of urgency and somewhat of a missed opportunity to further cement this centrally important right as a core foundational component of the bridge to turn the pact into a global reality.

Fourth, by and large, the 56 Actions listed in the Pact for the Future, the main substantive components of each of the five chapters, are meant to be the fulcrum the peoples of the world are to leverage to walk the path towards a world that is "safe, peaceful, just, equal, inclusive, sustainable and prosperous, a world in which well-being, security and dignity and a healthy planet are assured for all humanity"[24]. They cover, inter alia, "effective environmental policies (...) to advance sustainable

development”. Some elements, such as a worry around water scarcity, do seem to feature more prominently than in the past. The Climate change action item[25] is the longest item and denotes quite a bit from the others in how it connects, with some degree of precision, to the outcomes of a historic COP28 in Dubai, including the UAE Consensus[26]. Climate Change is also referred to beyond its dedicated action item, including when it comes to “[accelerating] the reform of the international financial architecture so that it can meet the urgent challenge of climate change”[27] or, more indirectly, in view of the Request to the International Court of Justice to give an advisory opinion on “the obligations of States in respect of climate change” [28], in the commitment to “fulfil [their] obligation to comply with the decisions and uphold the mandate of the International Court of Justice in any case to which our state is a party”[29]. Interestingly, the Kunming Montreal Global Biodiversity Framework[30] is referred to within the Climate Change Action item[31] and not mentioned within the action item to “restore, protect, conserve and sustainably use the environment”[32]. In a similar spirit, while the temperature goal of the Paris Agreement is reaffirmed[33] and several 2030 targets are recognized in the Climate Change Action Item[34], there is no similar reference to the two other goals of Article 2 of the Paris Agreement[35] nor, apart from a fairly vague reference to the implementation of “the framework to halt and reverse biodiversity loss by 2030 (...) all multilateral environmental agreements”[36], to the 23 targets[37] of the Kunming Montreal Global Biodiversity Framework including, inter alia, the target to restore, by 2030, at least 30 per cent of areas of degraded terrestrial, inland water, and marine and coastal ecosystems, and the target to conserve, by 2030, at least 30% of degraded terrestrial, inland water, and of marine, and coastal areas. While a focus on implementation is very welcome and needed and is an important priority of the work of IUCN WCEL[38], “all multilateral environmental agreement” may have warranted a stronger political signal. A signal, for example, of a similar nature to the commitment to “accelerate efforts to address pollution of air, land and solid, fresh water and the ocean”[39]. One may hope that ambition, when it comes to the very important legally binding instrument on plastic pollution, including in the marine environment[40], should not limit itself to the conclusion of work by the end of 2024[41], as important as that may be, but be also reflected in the substance of the provisions that will comprise said treaty.

Fifth, some forward looking issues, such as Rights of Nature, to which the IUCN World Commission on Environmental Law has dedicated a task force, may have seemed, to some, a tad too futuristic for a Pact for the Future[42]. In addition, the lack of reference to the positive establishment of a Presidency youth climate champion as an outcome of COP28[43] might be a bit of a missed opportunity in a forward-looking document such as the Pact for the Future. On the same note, the lack of call, in the Pact for the Future, for the ratification of the BBNJ[44][45], adopted in June 2023 may be a tad unfortunate.

2. The Global Digital Compact

The Global Digital Compact recognizes that the strength and speed of emerging technologies are at the source of both tremendous opportunities and troubling challenges and thus require “human oversight of technology in ways that advance sustainable development and the full enjoyment of human rights”[46]. Information systems are often describes as having six components[47]: the hardware, the software, the data, the peoples, the processes and the network communications. Each of these components may rely on and/or impact the environment. Indeed, the digital transformation and the environment have both[48] direct (the extraction and mining of natural resources essential for hardware products, the unsustainable collection, recycling, and disposal of equipment linked to the digital transformation, the associated greenhouse gas emissions, etc.) and indirect interfaces (the greater energy needs linked to the digital transformation, the deployment of digital solutions across various products and services and the environmental impacts of these shifts, etc.). Cognizant of these interactions, the Global Digital Compact identifies, as one of its principles, that “digital technologies unlock new capabilities and opportunities for advancing environmental sustainability” [49] and stresses that the Compact “leverage digital technologies for sustainability while minimizing their negative environmental impacts” [50]. The asymmetry between sustainability which encompasses economic, social and environmental dimensions and the specificity around the minimization of negative environmental impacts is worth noting. The previous principle need be connected with at least three particular actions listed in Global Digital Compact:

- “Promote sustainability across the life cycle of digital technologies, including context-specific measures to increase resource efficiency and

to conserve and sustainably use natural resources and that aim to ensure that digital infrastructure and equipment are sustainably designed to address environmental challenges in the context of sustainable development and efforts to eradicate poverty”[51].

- “Strengthen efforts to collect, analyse and disseminate relevant, accurate, reliable and disaggregated data for better monitoring and policymaking to accelerate the achievement of the 2030 Agenda, while respecting privacy and data protection. We will aim for a 50 per cent increase in the data available to monitor the Sustainable Development Goals, disaggregated by income, sex, age, race, ethnicity, migration status, disability and geographical location and other characteristics relevant in national contexts”[52].
- “We recognize the immense potential of artificial intelligence systems to accelerate progress across all the Sustainable Development Goals. We will govern artificial intelligence in the public interest and ensure that the application of artificial intelligence fosters diverse cultures and languages and supports locally generated data for the benefit of countries and communities’ development. This includes, in particular, international cooperation to support developing countries in building artificial intelligence capacities as well as efforts to address potential negative impacts of emerging digital technologies on labour and employment and on the environment”[53].

It is fundamental that these actions are designed, implemented and assessed in a manner that strengthens, and not hampers, the environmental rule of law, including when it comes to access to environmental information, in alignment with treaties such as the Aarhus Convention[54], the Maputo Convention[55] and the Escazú Agreement[56].

3. Declaration on Future Generations

Future generations are not a novel concept. Although more recent scientific discoveries dispute that[57]. They are present in the Charter of the United Nations[58], referred to in the Stockholm Declaration[59], the World Charter for Nature[60], are an integral component of the definition of sustainable development[61] and the focus of work that took place at UNESCO almost three decades ago[62]. The concept of the rights of future generations has also recently benefited from important substantive contributions[63]. The contributions of IUCN to the concept range from “observing that

interpretations in legal texts and practice of the principle of sustainable development tend to settle on meeting the needs of present generations rather than factoring in the needs of future generations”[64] to urging “the States in general and IUCN State Members in particular to promote the creation and development of Offices of the Ombudsperson for Future Generations at international, national, regional and local levels”[65] and highlighting “the need to give these Offices of the Ombudsperson for Future Generations a voice in decision-making processes and the right of veto, which will allow them to assert the rights of future generations”[66]. These are but a few of the reasons why the Declaration on Future Generations is a document that warrants particular attention. Environmental concerns are integrated in the Declaration in a variety of ways. First, the declaration identifies as one of its principles that “a clean, healthy and sustainable environment, where humanity lives in harmony with nature, must be created and maintained by urgently addressing the causes and adverse impacts of climate change and scaling up collective action to promote environmental protection.”[67]. Second, several of the commitments listed in the Declaration have a direct or indirect environmental focus. Of particular note, the prioritization of “urgent action to address critical environmental challenges and implement measures to reduce disaster risk and build resilience, reverse the degradation of ecosystems and ensure a clean, healthy and sustainable environment; and reaffirm the importance of accelerating action to address climate change and its adverse impacts, based on the principle of common but differentiated responsibilities and respective capabilities in the light of different national circumstances, noting the importance for some of the concept of “climate justice””[68] which aligns fairly well with the IUCN approach[69]. In addition, the emphasis on the rights of indigenous peoples, their territories, lands and ecosystems[70] aligns positively with the increased attention[71] IUCN has rightly paid to this critically important issue. On the other hand, the important reference to “an accessible, save, inclusive, and equitable quality education”[72] may have benefited further from a stronger link to the outcomes of the Transforming Education Summit[73] and the integration of education for sustainable development and environmental education[74]. The actions segment is potentially the weakest segment of the declaration when it comes to the direct consideration of environmental concerns. Indirectly however, several provisions hold promise for the environment when it comes to implementation, such as: the highlight of science, data, statistics and strategic foresight[75], the emphasis on inclusive and equitable access to

knowledge, science and information[76] (access to environmental information), the call to strengthen anticipatory risk analysis[77](a promising endeavour in the context of the precautionary principle[78]), the whole-of-government approach[79](which can play a key role in minimizing silos that delay environmental action), the enhancement of collaboration with stakeholders[80] (such as the IUCN WCEL) and the call to invest in capacity[81] (a core focus of the work of the IUCN WCEL[82]). However, all in all, when reading through the Declaration with an environmental lens, it is difficult not to think back on the 4 decades that have elapsed since the following sentence was included in the Brundtland Report: “There is still time to save species and their ecosystems. It is an indispensable prerequisite for sustainable development. Our failure to do so will not be forgiven by future generations.”[83].

Some of the generations that were then future are now present and, in a world heading to a catastrophic temperature rise of 3.1°C[84], time is clearly running out[85].

Conclusion

“Anything one man can imagine, other men can make real.”

Jules Verne, Around the World in Eighty Days

“All men dream: but not equally. Those who dream by night in the dusty recesses of their minds wake up in the day to find it was vanity, but the dreamers of the day are dangerous men, for they may act their dreams with open eyes, to make it possible.”

T.E. Lawrence, Seven Pillars of Wisdom: A Triumph

The integration of the environment in the Pact for the Future is both a marriage of convenience and of conviction. Indeed, the pact is, among other elements, a reflection of a measure of progress in how environmental concerns shape the political discourse. It is also however a clear indication of how perilous the current situation of the peoples and planet is. All in all, the Pact for the Future and its annexes read as a document in tension: a document in tension between a multilateralism under pressure for the

current generations and a multilateralism that is asked to deliver scales of magnitude more for the future generations, a document in tension between the urgency of addressing immediate and large scale needs, and the aspiration to inspire long-lasting transformation, a document in tension between the expectations of providing fast action and the need to govern long problems[86]. Tensions, in and of themselves, should not be seen solely as barriers. Creativity often flourishes under constraints and turns imagination into reality.

And that can be the case for both artists[87] and jurists. In 2017, the *Club des Juristes*, under the leadership of Laurent Fabius, President of the Constitutional Council of France and former President of UNFCCC COP21, and in close partnership with several members of the IUCN WCEL, including then Chair Justice Antonio Benjamin and current Chair Prof. Christina Voigt, imagined a Draft Global Pact for the Environment[88]. The Draft Pact featured a series of provisions covering a range of issues including intergenerational equity, the right to “an ecologically sound environment adequate for their health, well-being, dignity, culture and fulfilment”[89], integration, the polluter pays principle, non-regression, the effectiveness of environmental norms and access to information and environmental justice. The consideration of several of those elements evolved positively impactfully in different forms[90]. The bar for the Pact for the Future needs to be set higher. The Pact and its annexes have identified several follow-up and review mechanisms including, in 2027, a high-level review for the Global Digital Compact and, in 2028, a Heads of State and Government meeting for the Pact and a high-level plenary meeting for the Declaration on Future Generations. Before then, the high-level 2025 United Nations Conference to Support the Implementation of Sustainable Development Goal 14: Conserve and sustainably use the oceans, seas and marine resources for sustainable development, under the overall theme “Accelerating action and mobilizing all actors to conserve and sustainably use the ocean” will be an important moment to “Take ambitious action to improve the health, productivity, sustainable use and resilience of the ocean and its ecosystem”[91] and “accelerate efforts to address the pollution of (...) the ocean ”[92]. A key opportunity lies a few months later for the IUCN and the IUCN WCEL to, as dreamers of the day, make the world envisioned in the Pact for the Future a reality for peoples and planet. That opportunity is to envision the Pact not as a ceiling but as a floor for the 20-year strategic vision for the Union. The 2025 IUCN World Conservation Congress, which will take place 9-18 October 2025 in the beautiful city of

Abu Dhabi provides us with the right occasion at the right time to seize that opportunity. Indeed, many of the provisions of the Pact for the Future align very well with the objectives of IUCN to “influence, encourage and assist societies throughout the world to conserve the integrity and diversity of nature and to ensure that any use of natural resources is equitable and ecologically sustainable”[93]. In the Pact for the Future, the IUCN community has an important reference document, for better, for worse, for richer, for poorer, in sickness and in health, until we all do our part for “a world in which well-being, security and dignity and a healthy planet are assured for all humanity”[94] for present and future generations.

[1] Dr. Grethel Aguilar

[2] A/RES/75/1, para 20

[3] Our Common Agenda – Report of the Secretary-General, United Nations, 2021

[4] Our Common Agenda – Report of the Secretary-General, United Nations, 2021, p. 5

[5] A/RES/76/307, para 4

[6] A/77/L.109, para (a)

[7] A/77/L.109, para (d)

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[9] H.E António Guterres

[10] “World leaders adopt pivotal UN Pact for the Future”, September 22nd 2024, UN News, <<https://news.un.org/en/story/2024/09/1154581>> accessed on October 27th 2024,

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[12] Pact for the future, para 18; The Sustainable Development Goals Report: 2024, United Nations ; “Earth may have breached seven of nine planetary boundaries, health check shows”, <<https://www.theguardian.com/environment/2024/sep/23/earth-breach-planetary-boundaries-health-check-oceans>>, accessed October 13th 2024

[13] Adopted in 2015

[14] Adopted in 2015

[15] Adopted in 2022

[16] Millenium Declaration adopted in 2000

- [17] The Future we want, A/CONF.216/L.1, para 87-90
- [18] Pact for the Future, para 11
- [19] Inter alia: Pact for the Future, paras 26, 32, 34, and 44
- [20] Pact for the Future, para 3
- [21] Inter alia, among many references: Pact for the Future, paras 9, 13, 19, 26, 61, 74
- [22] The human right to a clean, healthy and sustainable environment, A/HRC/RES/48/13,

2021, para 1 & The human right to a clean, healthy and sustainable environment, A/RES/76/300,2022, para 1

- [23] Pact for the Future, para 61 (e)
- [24] Pact for the Future, para 4
- [25] Pact for the Future, para 28
- [26] For example, paras 28 and 29 of “Outcomes of the First Global Stocktake”, Decision 1/CMA.5
- [27] Pact for the Future, Action 52
- [28] Request for an advisory opinion of the International Court of Justice on the obligations of States in respect of climate change, A/RES/77/276, 2023
- [29] Pact for the Future, Action 17
- [30] Kunming-Montreal Global Biodiversity Framework, 2022, CBD/COP/DEC/15/4
- [31] Pact for the Future, para 28 (e)
- [32] Pact for the Future, para 29
- [33] Pact for the Future, para 28 (a)
- [34] Pact for the Future, para 28 (c)
- [35] “Increasing the ability to adapt to the adverse impacts of climate change and foster climate resilience and low greenhouse gas emissions development, in a manner that does not threaten food production” and “Making finance flows consistent with a pathway towards low greenhouse gas emissions and climate-resilient development”, Paris Agreement, United Nations, 2015, art. 2 (b) and (c)
- [36] Pact for the Future, para 29 (e)
- [37] Kunming-Montreal Global Biodiversity Framework, 2022, CBD/COP/DEC/15/4, para 13
- [38] Including for example the work on “Measuring the effectiveness of environmental law using legal indicators”, IUCN WCC 2020 Resolution 050, as evidenced, inter alia by, 2021, Fromageau, J., Cherkaoui, A., & Coll, R. (Eds.) (2023). *Measuring the effectiveness of environmental law through legal indicators and quality analyses*. IUCN Environmental Policy and Law Paper, No. 91. Gland, Switzerland: IUCN.

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- [42] Pact for the Future, para 19
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- [50] Global Digital Compact, para 8 (e)
- [51] Global Digital Compact, para 11 (e)
- [52] Global Digital Compact, para 45 (b)
- [53] Global Digital Compact, para 53
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